

Chapter 5

Positivism philosophy

- * The term positivism philosophy also some called it
 - * Analytical school
 - * Imperative School
- * The positivism philosophers divided as ^(positivism) some are "soft positivist" & other hold positivist (Analytic/Imperative)
- * Etymological meaning is it come from latin word "positum" It refers to "The Law as it laid down" (posted)
- * So studying law as it is/as it exist is the subject/concern of jurisprudence
- * So for them law is objective grasped/as it exist & its validity may be from Verifiable Objective. $\rightarrow$ relating to material object, actual existence or reality.
- * Contrary to Natural law: positivist sayed that any one can grasp or understand law & its validity is from Verifiable source, (not ideal) (transcendental)
- * So The law come from objective Verifiable source (eg. King - Parliament) ^{Queen} without considering its content (moral/immoral) (good/bad)
- * We do have 2 Basic concept in positivist.

The Existence of law is one thing - it's goodness/badness is another

 1. What is Nature of law
 2. Sharp separation b/w law & morality.

1. What is Nature of law

- Law is a social fact, as social fact it derive from some sort of social ^{agreement} convention. It's not derived from Natural law.
- So that Law is just created by human being.

2. Sharp separation b/w law & morality

- Laws are not derived from moral principle / It doesn't get its validity from Moral concept.
- * Hard positivist clearly distinct the moral aspect & law, but some times in soft positivist there may be hard case to use morality.

positivist focus only on studying law as it is? what existed only?

- They focus on only on "is" concept not "ought/ought not" concept they study the Existed law (laid down law) $\rightarrow$ Exclusion of morality
- from teaching of positivism we can grasp two main idea or standards / value (by we learn positivist we grasp/understand) the
 1. Notification of laws
 2. What should be role of judge

1. Notification of law

- All laws should be written & communicated to the society. law ^{become recognized by the people.}
- 2. What should be role of judge

The common law judges that he observed in England are become corrupted

- There is need to reduce the power of judges to the application of laws or rules simply.
- The judge doesn't authorize to make law rather apply what given for them (what is stated in law).
- * we don't allow judges to apply subjective feelings of them. / If we allow them to create law they use their subjective feelings & we will not have objective judiciary. (Ato Abete & Ato Kerede judges differently)
- & we will also have no neutral judiciary. (do not allow judges to make law to create objective & neutral judiciary)
- # If we follow the objective & neutral judiciary it becomes absurd but some times we have to use some equity. But positivist doesn't accept the inclusion of equity.

A. DAVID HUME (1711-1776)

- He is empiricist (knowledge comes from sense experience) England philosopher
- from his philosophy there are 2 main concepts
 1. to challenge the traditional framework of moral philosophy.
 2. Before/at his time the idea is "morality & law have some relation" so he want to challenge this tradition
- To Attack/undermine the overblown (self important) or knowledge pretension for knowledge
- rationalists overblown (exaggerated) idea about the self important of knowledge. rationalists focus on reason is source of knowledge but he doesn't accept it. He says passion (emotion/sense) is the one which govern our behaviour rather than reason.
- # So if knowledge is passion "knowledge get from sense experience"
- * The most important idea of Hume for positivist.
 - Matter of fact should be understood in a complete separation with subjective evaluation. (value judgement) to give judgement on "fact" is create some nonsense
 - we should separate "is" from "ought"
 - If we don't separate "is" from "ought" it becomes nonsense
- # It is DAVID HUME who open the eyes of positivist.

- He says that the issue of morality & reason can't be combined. b/c the moral worthiness/merit are not open to more reason (rational analysis) reason is an instrument simply. so it help us to come up with a way which is good to achieve one / to come up with conclusion. So reason can't evaluate the end result (conclusion) rather it pave the way to that conclusion. we evaluate the result by the feeling found in our inherent sense. (inherent is not on human ideas but inherent in human)
- From time of Hume only the concept of "Law & morality should be separate existence. (law should be investigated beyond any bias of morality)

Jeremy Bentham (1748-1832) (Utilitarian)

- Some says He was a founder of classical philosophy & positivism. ^{↳ success full launching of modern legal positivism.}
- But some also say founder was Austin b/c Bentham doesn't write book but we found him on Austin's book - jurisprudence determined.
- He is Hard positivist (empharist) & the successful study of positivism start from his time (decline of Natural law start from time of Bentham when he attack Blackstone)
- Main Concepts in his philosophy

Coercive element of law.

- Law is simply a matter of force. If we are able to determine a powerful people in society, then we will discover the essence of law within that society. ^{↳ How they practice their (empharist) own need}
- He says it in England the so called "dog law" that means the case is happening it take to the judge, & the judge give the judgement after the fact. so such decision **do not** make us to have objective & rational judicial organ.

Expositional jurisprudence

- In this sense we say that "what is law?" & it is descriptive we talk only about the existed fact issue

Consonial jurisprudence

- In this sense we say that "what the law ought to be" it is such a prescriptive one. it existed when we are preparing the law ^{↳ it is subject to moral criticism based on principle of utility.}
- # When we talk about law, we talk about only Expositional jurisprudence (what the state law says only is our focus)

* He says that * Good is pleasure } Utilitarian approach
* evil is pain }

So the purpose of law should be to attain "good" avoid "evil" or it simply be existed to serve utility. (Maximum happiness for greatest no. of people)

- # So in idea of Jeremy Bentham rulers **should not** use law to safeguard their interest rather they have to safeguard the interest of the greatest governed one. but ~~we~~ what about minorities?

John Austin (1790-1859) student of Bentham

- He is prominent philosopher in philosophy of positivist
- We know him by his phrase/statement which is.
"law is command of sovereign backed by sanction"
- He served the army of British & He practiced law but not become successful & He also taught law but His teaching is not interesting for student. But His teaching & His Book become known & prominent after his death
- He was student of Bentham & He also use the idea of Bentham in Book

The most useful idea of him in positivist is
& His Attempt to distinguish law from other principles

Positive Law & Morality

- The starting point for science of law should be clear Analytical separation between law & morality. But separating law & morality doesn't mean moral questions were unimportant. But it use for to see independent legal argument.

- As Bentham & Austin also says that we should focus on what the law is or on factual existence of the law. not on "ought to"

He recognizes law not as something derived (eminent) in community life as "implicit concept of common law" concept. But recognize law as "imposition of power"

? What is the factual existence of law?

- The factual existed law is positive law
- Positive law is law set by politically superior organ to govern the political inferior organ (positing/setting of rules by human creator)
& so law is rule made for guidance of an intelligent human being.
& made by intelligent human being (It also need to Humanism idea)
& If we say that there is imposition of power so He look law as imposition of power.

The world law shouldn't be used improperly for that no strict sense "legal"

Austin Analysis of Law

- We do have some sort of interest. so we fulfill our request interest by way of request. If one request some one He can't cause damage (inflict) on who oppose his request. But this is not a business of law.

- The Business of law is fulfilling our interest by command & the one who command the other have a power to cause danger (to penalized him) If the commanded refuse the command & the commander

& This command is also classified into two -

- orders (occasional) are command but it have no sanction.
Ex: servant girl in one house

- Laws are a command & also have sanction if we fail to do so

- Law also classified as -

Laws improperly so called are not laws in strict sense. They are regulations of nature which science discovers. which are not laid down as law. He calls these "Metaphorical laws"

law that properly so called
law that improperly so called

Ex: Fashion law (wearing rule)
internation law.
etiquette (ceremonial code of polite society)
Honor/Land

* International laws are not laws properly so called bc it have no sovereign organ which it have no source
* consn

- law that properly so called are classified as - Human law
* There're also classification of Human law.

1. laws strictly so called (positive law)
2. laws not strictly so called (positive morality)

Law which is found in the society but not made by the sovereign.

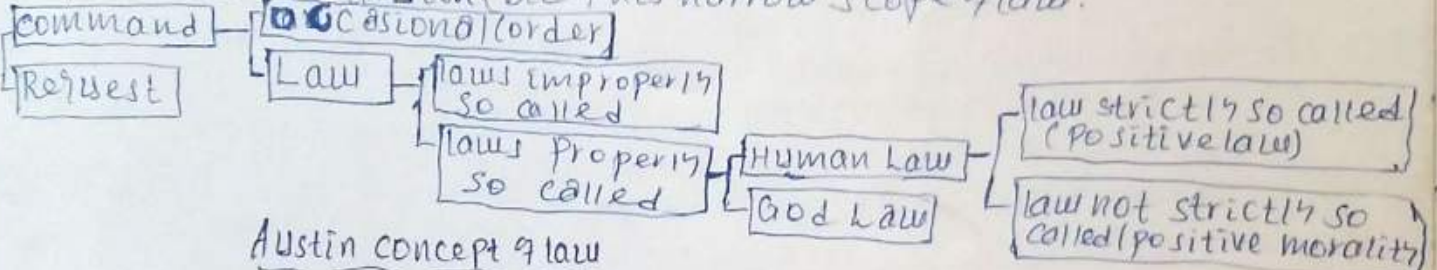
* laws strictly so called (positive law) are created by sovereign (political superior organ) for sub inferior one.

* laws not strictly so called are laws which created by society as there's no superior organ

Rules created by teachers, religious father, Employer, parents, guardians & orators are not strictly so called (to control the action of follower so positive morality)

⊙ The business of ~~law~~ ^{jurisprudence} is only the laws which are Human laws which are laws strictly so called (positive law)

* We use the so called "law" in different scenario & this idea of pt His idea becomes narrow. & this is one which open the door for criticism Austin/bc of his narrow scope of law.



Austin concept of law

"Law is a command of sovereign backed by sanction."

* From the definition of Austin there are 3 main elements.

1. **Sovereign** (where the bulk of a given political society then are in habit of obedience to determine common superior)
2. **Sovereignty** is exist when there is obedience in the society to that entity.
3. **Given society** become obedience to certain organ

* This organ (the sovereign) serve as source of law. even it is the only source of law that law is positive law.

* The sovereign organ may have different form (supreme legislative Assembly, King, Queen, the body of person, individual legislator, one body) the matter is "the existence of sovereign power of making law"

20 The society need to obey (obedience) to the sovereign entity. again this obedience is only to sovereign entity. (obedience must be permanent & habitual)

20 This sovereign entity must be clearly defined & must be known by society.

20 All the society need to know the existence of that sovereign entity.

20 This sovereign organ obeys no one else. the sovereign organ is incapable of limitation (there is no limitation) (uncommanded commander)

Eg: In our country HPR is law maker it has also limitation by consn. But Austin says when there is contradiction between consn & sovereign power the later prevails. (human law is not a law for Austin)
HPR is not sovereign consn is not sovereign consn is not a law.
National lord become superior in his governed society but he is not supreme (sovereign) of that society. He has another superior than him.

- It is a crucial element even his theory focus on coercive element of law & his theory called "imperative" / command theory.

- Command is a way by which a sovereign will is expressed. Acc to him we can say that "law is expressed in form of command."
→ Command is a central point in his theory so to execute our command and by power so power is central element (power) in his theory

How we distinguish command from others?
* To distinguish command from others we need to see if there is conflict (danger) for one who fails to obey (obey) the command. If there it is command. If not it is not a command.

Sanction

2nd possibly we can say that sanction is conditional (i.e. one (sanction) exists where the individual is not being complied with the command).

2nd Acc to him sanction is analytically essential to law

2nd Sometimes If you fail to comply with the command it may cause other legal consequence.

When we talk about "law" it is irrespective of "Morality" only we see the existed one (focus on "is" not on "ought to") & we do not give value judgement on law

HART criticism on Austin

- All laws are not as Austin says (not all backed by sanction)
* There

- Assuming sovereign power as only source is invalid.

* There're organs which make law but not sovereign in his concept of sovereignty

- The formation of new sovereign

- If the parliament fails & other become in power in what way we rely on new sovereign/ How can we develop new obedience to the new sovereign. (i.e. He says obedience is only to the sovereign).

- This concept is implicitly contains "Everlasting sovereignty" which is don't fail, don't interrupt --- kkk

Ass criticism on Austin theory of law & counter criticism on Hart critics on Austin

* In General idea of Austin sovereign is ultimate legislator, executor & decision maker and superior to all his subjects. command means the way of expression of the need of sovereign. Liberals see law as set of rules for purpose --- liberty of individual. But Austin law as technical instrument of govt, Admin which should be efficient (making good) and aimed at the common good, determined by utility.

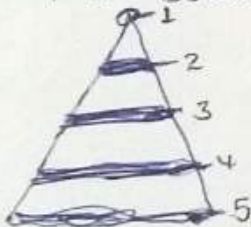
Sanction: There are essential to existence of command. But rewards for compliance would indicate promise not a command (sanction).
or any disadvantage formally specified directly/indirectly by law. As in case of non compliance they serve as sanction. Eg: If one driver (breach law) fails to respect traffic light rule the cop (police) may take his driving licence. But sanction may go beyond this it may cause legal consequence, (the driver may go to court & become penalized before the court of law (there must be sanction after the claim) if not it is not law

Hans Kelsen (1881-1973)

- ✗ He is well known philosopher & positivist but his theory were the most complex theory of positivism.
- ✗ He teach in Harvard (USA), Britain, Austria. His retirement age were in America & He have got citizenship. So we can say he have 2 dif experience (N-American & European)
- ✗ Law should be studied as pure science we should not contaminate with other incidents / scenario. Morality, religion --- are not concern of law.
- ✗ The investigation made by N.L philosopher by taking into account (Morality, Ethics, religion) other standards is not proper way of studying law
- ✗ The Validity, Authority... of law is nothing have in non legal factors. for him non legal factor are, politics, Ethics, Morality, religion.
- Because of this idea also we call (He call) his theory pure theory. and this theory focus on man made law.

In this theory. He ask what is the accurate subject of jurisprudence? As other positivist He say jurisprudence subject will be "what is the law" so we can say (He say) It is science not politics of law.

- What is law? Law is a system of norms (collection of norm)
- What is norm? Norms are ought standards / statement that prescribe the mode of conduct.
- What make differ these norms (legal norms) from moral norms?
Legal norms are created by the act of will (They are product of deliberate human actions) The "product" only is legal norm. The procedure are not law)
- ✗ We can't find these norm from fact only rather we find them from such believe (Ground norm) which is sort of faith (not more than believe)



1. Ground norm (believe)
 2. law enact based on 1
 3. law enact based on 2
 4. law enact based on 3
 5. law enact based on 4
- But all these are not more than Ground norm (believe) the validity of each is based on is that they have validity with higher hierarchy law.

Be mind the Ground norm is not positive law rather it is believe which is found / awareness in the minds of jurist

? One govt govern one country for 50 years but after, one revolutionary govt replace that govt. So Kelsen says jurists create a new ground norm b/c we can't understand legal orders unless we presuppose the ground norm. To presuppose it they see (jurists) see that it is effective to that system? If it is effective they will assume it.

? What is the use of Assuming Ground norm?

It have 2 importance

1. helps us to distinguish the demand which come from roller & demand which come from law
- Eg:- one robber come to class & command us to give him all our money & he carry arun. for the time being. Unless we respect the order, He has a power also to impose sanction. so now if we know ground norm we can distinguish such commands from Law

2, It helps us to have a unified & coherent legal order.

- The law will not be contradict each other. In fact there is consensus to change the first Ground norm by new one if the one fail & the other become rise?

Eg:- Our 1931, 1955, 1982, 1998 conses have diff ground norms as the Governor changed. So laws don't contradict each other because we are assuming such a ground norm which gives Validity for all laws.

HART (1907 - 1992) (Soft positivist)

* He is well known law philosopher in Oxford University. He is well known by his book "Concept of law"

* We need to have some fundamental rules to survive as a community. He calls these "minimum content of Natural law"

* Human condition

1. Human Vulnerability: We all individual are vulnerable to attacks from others. ^{Expose to danger being attacked.}
2. Approximate equality: by nature we all are have Naturally approximate equality. In all of us eg, there is no one who does not sleep
3. Limited humanity: our humanity is limited one we are egoistic
4. Limited resource: we have limited resource. So when we use these resource we should consider Inter Generation & Intra-Generation.
5. Limited Understanding: _{Prisoner dilemma.}

All these problems requires for the enactments of rules, To protect persons and properties.

He is father of Modern positivist & He is also soft positivist

* As Austin, Hart also believe that law & morality should be seen in separate ways. But Hart also contradicted Austin's idea that "the Austin Concept of law are narrow"

* Hart: says when the law is not able to address the problem we may return to legal principles. But we do not refer validity of the law to these principles

Legal validity

* we have 2 things that influence human behaviour

1. Social habit: which they have only external aspect. ^{these are things that follow by society. Eg: one on Friday after noon go to cinema but one day He do not go to the cinema, his friends do not obliged him b/c it was no internal aspect}
2. Social rules: which they have external & internal aspect. ^{so we can say that there is no internal believe that habit is must be respected.}

2. Social rules: which they have ~~own~~ External & Internal feeling. If one enter by his shoes in church, the other may criticize him & He says sorry & He leave his shoes out of the church b/c He has internal feeling for respect of that rule. From External feeling we use the situations like these who were incriminated.
- If we see these social rule even whites go to Tdnd they follow these rule b/c fail to comply with these rule may result some situations of criticism.

* Social rules classified as

1. convention: as an example rules of correct speech. If one want to represent us for LSU & if his speech are not proper we may make criticism against him. they are not more than criticism.
2. obligation: it is more convention but if one do not comply with such rule we may not only criticize him rather we may also impose some sort of obligation / sanction.

* Obligations may be classified to

1. Moral obligation: which are they have no centralized body to enforce them. the only thing we use for the one who do not respect these moral obligation, is some sort of hostile reward which is more than criticism on conventions.

! They are moral codes of the given society.

2. Laws: we have centralized organ which impose some sort of physical sanction on persons who do not respect these rule.

* Law is also known as primary & secondary rules.

• we have to think both laws / rules in modern sense. & He says for any social existence primary rules are necessary. so for present dynamic society we do have both of them. If we find only primary rules they are primitive laws. & these societies are primitive societies.

1. primary laws: are substantive laws which tell us "what to do" & "what not to do". But using primary rules create problems such as
A. problem of uncertainty: whenever there is contradiction / problem in primary rules who solve the problem? No one is there

B. The rules will be static: The rules last for many years b/c there is nothing tell us how to change these rule so they are only changed through natural evolution which may take long period of time

C. inefficiency: If we have only primary rules, who adjudicate (give judgement) for one who violate such rules (primary rules).

The primitive societies were subject to such problems b/c they have only primary rules.

2. Secondary rules: They are power related rules, about how we make, adjudicate, change these primary rules

• we have 3 types of 2ndary rules which solve problems which are we face b/c of method only primary rule

A. Rule of recognition: This is criteria which help us to determine is one rule is primary rule or not. b/c we have an institution which determine such rule is primary or not & proper / not proper
• rules of recognition solve our problem of uncertainty because now we know we do make these rules.

B. Rules of change: this rules change state the procedures for making laws. when we need to change one rule by taking into account the procedural aspect we can change them so this solve problem of staticism of laws

C. Rules of Adjudication: we create some institution to adjudicate one who do not comply w primary rules. so this solve problem of inefficiency.

2ndary rules are rules which are set for purpose of implement change / primary rule

Generally: we can say there is revision on positivism. so there is discontinuity
b/w Austin & HART.

- * Unlike Austin idea of monopoly of power. HART idea gives us there is constitutional restriction / specially Rules of recognition is the final Authority for the law. which it comes from constitutional law.
- * so constitution serve as source (final Authority) for primary rules. Unlike that of Austin who presuppose Sovereign Authority which centralized all the power (Uncommanded Commander) which have no power restriction we see from HART there is Constitution (supreme one for source of primary rules).

Donald Dworkin criticism on HART'S concept of Law

- HETS Jewels but American National. Donald Dworkin have 2 important Book 1. Taking Right seriously. 1977
2. Law's Empire 1986
- when HART becomes retired in Oxford DD (Donald Dworkin) is the one who take (substitute) place of HART
- ⊗ In his first book He write reasons why He wrote that book. He say that I am writing this book for the purpose of criticising the ruling theory of Law (ruling theory of law mean positivism. b/c at that time the positivism theory have some dominance)
- * The Ruling theory of law has 2 things (which are mostly dominant)
 1. Law's rule which are issued by certain specific institution.
 2. what purpose should the law serve (the answer to this question by positivist is somewhat "utilitarian". that meanse the focus is the general welfare of the community.
- # For DD these the two dominant idea are wrong. b/c
 1. Law's not only consist of rules issued by specific institution because law may emanate from principles & moral value. "Principles are the bridge between law & moral value."
 2. If we say law serves utilitarian. (general welfare of society) it may have impact of dis regard of individual right (we become
- ⊗ In his second book He focuses on adjudication of HARD CASE
 - HARD CASE is situation which is the existed law / rules provide NO answer. and individuals have right to be adjudicated by the court.
- SO DD says in this case "this is Headache for positivist" But He come up with the role of judges to interpret by taking into account fairness (the judge become out of subjective opinion) idea & it focus on the existed legal principles.
- # Most Author agreed that concept of Donald Dworkin is found b/w the two philosophy of law b/c. in Naturalist He donot agree w/ law is valid by higher principles. & from positivism He disagree w/ law & morality should have strict separation (He say they have no strict separation). As He stated that legal principles have a gap filling role & they are become emanate from moral value. when the existed can't address the problem at hand. These legal principle are found in middle ground of rules (enacted by certain instn) & morality (which are pples in society) so the legal pples are mostly developed from the idea of morality which is existed from the given the society

HARD CASE

- At one time in US one son is waiting his grand father to take the property & his by succession (he is the only successor) But (he wants to become benefit from his own fraud) then He think that to kill & take the succession. Then He do it. become take to the court. at that time there is no law which prohibit such man from taking succession.
- Russian & American, play Chess. But the Russian man always lozh when the American want to play. B/c the game wants concentration so He make an American out of concentration. there's no law which prohibit such action But it is not proper thing.
- one car manufacturer & buyer agreed that "the manufacturer shall repair the car if there is problem on the car" one day the wife of the buyer take case to the court. she becomes in problem b/c of the problem found/exists on the car. But the manufacturer defend that we don't agree on such issue rather only on problems on the car
- * If we try to relate the positive law in morality. directly it is become difficult rather we use legal principles. are used b/c they are driven from Moral Value (not directly moral value). and for international rules are also have source from "general pples (legal pples) which are emanate from moral value e.g. The right to get fair trial

In Generally it is difficult if we say Law and morality has strict idea of separation.

Chapter 6

Historical & Sociological legal theory

- ⊗ Historical school of thought born in 19th c. It is possible to say it is not as such dominant theory like, Natural/positivism Theory.
- We have Two important philosophers: Savigny and Henry Maine
- They say "when ever we study about law Historical development also should be examined."
- Taking Law as abstract idea like Natural & positivism is not enough
- ⊗ Sociological school of thought is the product of 20th c
- Their focus is "on the actual function of the law in the society, they are not focus on Nature (abstract) component of law."
- Sociological's specially focus on "Laws in Action" rather than "Law in Abstract"
- we have 2 important philosophers in Sociological school
Eugen Ehrlich and Roscoe Pound

HISTORICAL School of Thought

→ Law do have some sort of direct relation in the life of the community

Savigny (1779-1861)

He is a German philosopher. and it is possible the most of philosophical ideas of he is attached in Germany

- ~~The spirit of the~~ "Law is manifestation of the spirit of the people in history"
(History was a collection of example what was happening in the past BUT for him History is not only collection of example rather it is the only way to acquire true knowledge about human being. So it is from history which we can get knowledge about law.

- Acc to him Law associated with language, manner, custom --

- When we develop a law it is not product of ^(Arbitrary person) sovereign rather it is the product of organic process. or Law is product of the society not the wish of Arbitrary organ for the society. (Not imposition of power from sovereign)

"Law comes from the people not from government"

- In his idea of philosophy the main idea is his word

"The spirit of the people" (Volkgeist)

• Custom is manifestation of Volkgeist.

- He sort out 3 stage of law

1. Law originate in custom - this express some sort of national unconscious as it derive from custom law is from common belief of the people

• He says "in ancient time it is difficult to sort out the law from manner, language, custom because they were blended together

• Acc to him "The legal development starts when we ask what are the common beliefs of the society. By it's own consensus the society try to sort out customs which are needed to be law. the next step

2. will be the "jurist" add their own skill (including issue of codification)

• at this time the role of jurist is only on Technical part (codifying the interest (existing) thing in the society only. or No more than Articulation (clarification) of Volkgeist but add Technical & detail express

• So we can say that there exist two fold of law existence

1. What is existed in the society (spirit of the society) Volkgeist
2. The skill of jurists (Technical existence) which is known in the mind of jurist is also the law

So After such developmental process of the two the law becomes in its maximum stage (manner) when the jurists add their own skill on the Volkgeist ("The spirit of the people). He say also the skill of jurists mostly "The Political element of law"

* There are two element in the law the spirit of the people & The political element

3. Lastly the law becomes decayed and other law become exist by following the process which is setted

From Savigny :- Is it we can sort out common spirit from Heterogenous Society,
:- Is it also only from the custom. What about Transplantation?
:- Is it real the role of jurist is only technical part? What about the interpretation role? & In reality jurists included their own understanding not only the spirit of the society.
Eg:- Art in criminal code states that "if the woman says that the pregnancy is exist b/c of rape & insist (consanguinal related for the doctor she can take abortion.
But is this the spirit of society (it may be the understanding of the jurist